

		placed under seal. Cal. R. Ct. 2.550(e)(1). All other portions of each document or page must be included in the public file. <i>Id.</i> Defendant's counsel's declaration accompanying the motion to seal states that portions of the settlement agreement should be sealed because (i) "[t]he Confidential Settlement Agreement . . . is a <i>confidential</i> document as is the amount of the settlement consideration"; (ii) "[t]he Parties' interest in protecting the sensitive and confidential information contained in the Parties' confidential settlement agreement overrides the public's interest in access to the records Defendant seeks to seal"; and (iii) "[t]he information cannot be adequately guarded short of sealing the confidential settlement agreement[] and there are no less restrictive means to achieve the overriding interest." Greving Decl. (ROA 123) ¶¶ 7-8 (<i>italics in original</i>). The reasons stated in counsel's declaration as purported support for sealing portions of the settlement agreement are conclusions, not facts. Counsel's declaration does not state facts sufficient to justify sealing the settlement agreement. In addition, as stated above, a court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties. Cal. R. Ct. 2.551(a); <i>see also McNair v. National Collegiate Athletic Ass'n</i> (2015) 234 Cal.App.4th 25, 36 ("the mere agreement of the parties alone is insufficient to constitute an overriding interest to justify sealing the documents"). Furthermore, a settlement agreement that has a confidentiality provision cannot be sealed unless there is a showing of serious injury which would result from public disclosure. <i>Universal City Studios, Inc. v. Superior Court</i> (2003) 110 Cal.App.4th 1273, 1281-82. Defendant has not submitted any evidence that serious injury would result from public disclosure of the settlement agreement. Defendant's motion does not provide a sufficient evidentiary basis for the court to make the required findings to seal the settlement agreement or to conclude that the settlement agreement filed in support of defendant's motion for approval of a PAGA settlement should be shielded from public view. <i>See, e.g., Overstock.com, Inc. v. Goldman Sachs Group, Inc.</i> (2014) 231 Cal.App.4th 471, 487 ("If the trial court fails to make the required findings, the order is deficient and cannot support sealing"). Defendant to give notice.
7	Ossipoff v. SoulCycle Inc. 2020-01146813	<u>Plaintiff Alexandra Ossipoff's Motion for Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a \$900,000 class action and PAGA settlement. The court has the following questions and comments: 1. What "Motion" is referred to in paragraph 7 of the Third Amendment? Third Supp. Chavos Decl. (ROA 356) Ex. H (¶ 7, at 6:20)?

		2. Has any interest accrued on the \$900,000 in settlement funds held by the settlement administrator? Third Amendment ¶ 1 (at 3:23-25). If so, how much? 3. The Third Amendment states: "Once the Settlement Administrator calculates the taxes that Defendant owes, Defendant will wire the additional funds to be paid by the Settlement Administrator to the appropriate government agencies." Third Amendment ¶ 1 (at 3:25-27). Why would these additional funds be funds "to be paid by the Settlement Administrator," as they are taxes owed by defendant (not by the settlement administrator)? And, by what deadline must defendant wire these additional funds? 4. In the April 2, 2026 order (ROA 351), the court stated that the statement in paragraph 13 of the Stipulation that the parties "will make the final decision" as to workweek and pay period disputes should be removed, as it is inconsistent with the foregoing sentences in the same paragraph. The court stated that the last sentence of paragraph 13 should be removed for the same reason. For unknown reasons, the parties have now removed the provision that the court may review any decisions regarding disputes made by the settlement administrator and reinserted the sentence stating, "The Claims Administrator's determination will be final and non-appealable." Third Supp. Chavos Decl. (ROA 356) Ex. H (¶ 9, at 7:15). That reinserted sentence should be removed, and the dispute procedure should be amended to state (i) the parties shall file with the court all disputes submitted by class members, the evidence submitted, and the resolution of the disputes, and (ii) although the settlement administrator may make the initial decision regarding claim disputes, the court may review any decision made by the settlement administrator regarding a claim dispute. Section 5 (Option #1) of the notice should also be revised accordingly. 5. Did the parties did submit a clean version of the revised notice? 6. The following revisions should be made to the notice (Third Supp. Chavos Decl. Ex. G): - Subsection (2) in the box at the bottom of page 1 of the notice is not correct as to aggrieved employees and should be revised to make that clear. - The phrase "will pay" in the first sentence of section 4(H) should be replaced with "has paid." - Section 4(I) appears to be missing several words. In addition, the phrase "the Claims Administrator shall receive cost" does not make sense and should be revised.
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		d. The word “un-cashed” in section 4(K) should be replaced with “uncashed.” e. The parties did not submit a Notice of Settlement Payment form with the supplemental papers. In addition, rather than including the PAGA pay period dispute form as part of the Notice of Settlement Payment form, as stated in the April 2, 2026 order (ROA 351), the parties for unknown reasons have included the PAGA pay period dispute form as part of the class notice. This should be revised. f. The word “and” between “Class” and “Settlement” in the first sentence of Option #2 at the top of page 7 should be removed. g. The words “releases” and “discharges” in the first sentence of section 6 should be replaced with “release” and “discharge.” h. In the April 2, 2026 order (ROA 351), the court stated that the following phrase (and all text after it) should be removed from the objection form: “If you are represented by an attorney or law firm, please provide the following information.” This has not been done. i. In the April 2, 2026 order, the court stated that the methods of submitting the objection form stated on the form are inconsistent with the settlement agreement and should be revised. This has not been done. 7. Copies of the settlement agreement and any amendments thereto and the class notice and its accompanying forms should be attached as exhibits to the proposed order. The hearing on plaintiff’s motion for preliminary approval is continued to <u>December 10, 2026 at 2:00 p.m.</u> in Department CX105 to permit the parties to address and respond to the above issues. See <i>also</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. <u>If required, an amendment to the settlement agreement is directed, rather than “amended settlement agreement,” to streamline the court’s review.</u> The parties shall also provide redlined copies of any revised documents. Plaintiff is ordered to provide notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. No earlier hearing date is available for this motion.
8	Rychlik v. Day & Nite Doors, Inc.	<u>Plaintiff’s Motion for Approval of PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff’s motion for

	2021-01207960	approval of an \$130,000 PAGA settlement. Subject to plaintiff's submission of the documents identified below, the court grants the motion as follows: No enhancement award to each plaintiff; \$32,500.00 for attorneys' fees; \$4,805.76 for attorneys' costs; \$2,650.00 for settlement administration fees; and \$90,044.24 total PAGA penalties (\$67,533.18 to LWDA). Plaintiff is ordered to submit <u>by August 20, 2026</u> a revised proposed order and judgment <u>with all exhibits attached</u> (fully executed copy of October 2025 amendment to settlement agreement; fully executed copy of second amendment to settlement agreement; and notice letter). The portion of paragraph (n) of the proposed order and judgment referring to a dismissal should be removed. In addition, the notice letter should be revised as follows: 1. The first sentence of the first paragraph of section A should end after "(the "Action")". The word "which" following "(the "Action")" should be removed and be replaced with "PAGA." I.e., the first two sentences of the first paragraph of section A should state: "You have received this Notice because you are an Aggrieved Employee in this Private Attorney General Act ("PAGA") Action, Mark Rychlik v. Day & Nite Doors, Inc., et al., Orange County Superior Court Case No. 30-2021-01207960-CU-OE-CXC (the "Action"). PAGA authorizes "Aggrieved Employees" to file lawsuits to recover civil penalties on behalf of themselves, other employees, and the State of California for Labor Code violations committed by their employer." 2. The last sentence of the first paragraph of section A should be removed, as the method of calculating the aggrieved employees' individual payments is stated elsewhere in the notice letter. 3. The first sentence of the second paragraph of section A should include plaintiff's name and the names of the defendants. 4. In the last sentence of the third paragraph of section A, the phrase "Plaintiff's litigation costs" should be replaced with "PAGA Counsel's litigation costs." 5. The stray parentheses at the end of the fourth paragraph on page 2 of the notice letter should be removed. 6. Other than the first sentence, all of the fifth paragraph of page 2 of the notice letter should be removed, as should the phrase ("The release provisions of the Settlement Agreement are as follows:") that follows it.
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